

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 24-03**

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**IN THE MATTER OF ATTORNEY MARCUS NUSSBAUM**

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**SETTLEMENT AGREEMENT**

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This Settlement Agreement is entered into between the Federal Maritime Commission and Mr. Marcus Nussbaum.

**RECITALS**

WHEREAS, in *Ovchinnikov v. Hitrinov*, FMC Docket Nos. 15-11 & 1953(I), Order Affirming the Initial Decision on Different Grounds, 2023 WL 1963462, at \*2, \*10-12 (FMC Feb. 8, 2023) (“*Ovchinnikov*”), the Federal Maritime Commission (“FMC” or “Commission”) stated that Marcus Nussbaum, an attorney who had appeared in five FMC matters over the past decade, had engaged in alleged conduct that may violate FMC practice rules in at least three of those matters: *Crocus Investments v. Marine Transport Logistics, Inc.*, FMC Docket No. 15-04; *Ovchinnikov*, and *Andrew v. Marine Transport Logistics, Inc.*, FMC Docket No. 20-12;

WHEREAS, the Commission elected not to proceed as to the alleged misconduct as part of *Ovchinnikov* but retained the option to do so at a later time (*Ovchinnikov*, 2023 WL 1963462, at \*12);

WHEREAS, on January 10, 2024, pursuant to 46 C.F.R. § 502.91, the Commission issued an Order Directing Attorney Marcus Nussbaum to Show Cause (“Order”) why the Commission should not impose a sanction of revocation or at least suspension of Mr. Nussbaum’s permission to practice before the agency on the basis of potential violations of the certification requirements of 46 C.F.R. § 502.6 and the professional conduct requirements of 46 C.F.R. § 502.26 of the Commission’s Rules of Practice, based on the alleged misconduct described in the Order at 3-4, and detailed in *Ovchinnikov*, 2023 WL 1963462, at \*11;

WHEREAS, the Commission has jurisdiction over Mr. Nussbaum and the authority to act on the alleged misconduct by Mr. Nussbaum;

WHEREAS, Mr. Nussbaum represents that he is competent to enter into this Settlement Agreement and has had the opportunity to consult with legal counsel;

WHEREAS, Mr. Nussbaum does not admit that he committed the misconduct alleged herein;

WHEREAS, the Commission and Mr. Nussbaum have engaged in discussions and believe it beneficial to resolve this proceeding subject to the terms and conditions set forth herein to avoid the burden of continuing formal proceedings; and

WHEREAS, Mr. Nussbaum has agreed to undertakings with respect to the alleged misconduct that was the basis of the Order, as set forth and described above;

NOW THEREFORE, in consideration of the premises herein, the Commission and Mr. Nussbaum hereby agree upon the following terms and conditions set forth herein.

### AGREEMENT

1. Mr. Nussbaum will refrain from practicing before the FMC for a period of no less than one year from the date this Settlement Agreement is approved by the Commission.
2. Should Mr. Nussbaum resume practice before the FMC after the expiration of the one-year period, Mr. Nussbaum agrees that he will comply with the FMC's Rules of Practice.
3. Should Mr. Nussbaum seek to practice before the FMC before expiration of the one-year period or fail to comply with the provisions of this Settlement Agreement, the Commission may re-institute the Docket No. 24-03 proceeding.
4. Mr. Nussbaum waives any rights to a hearing or to present evidence regarding the Commission's allegations.
5. No formal findings of a violation have been made as the parties have instead entered into this negotiated Settlement Agreement and this Settlement Agreement is not to be construed as a formal revocation and/or suspension proceeding.
6. This Settlement Agreement contains the entire agreement between the FMC and Mr. Nussbaum with regard to the matters set forth herein and shall be binding upon both parties.
7. This Settlement Agreement is immediately effective as of the date the Commission approves it.
8. Upon approval by the Commission, this Settlement Agreement will be placed in the public docket in FMC No. 24-03.

IN WITNESS WHEREFORE, the Parties have caused this Settlement Agreement to be executed by Mr. Nussbaum and the FMC's authorized representative as witnessed below.

  
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Marcus Nussbaum, Esq.

Date: 2/7/2024

ON BEHALF OF THE FEDERAL MARITIME COMMISSION

By: DAVID ENG  
David Eng, Secretary  
Office of the Secretary

Digitally signed by DAVID  
ENG  
Date: 2024.02.23  
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